

Court No. - 37

Case :- WRIT - C No. - 41428 of 2017

Petitioner :- M/S Kumar Textile Thru Proprietor

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

There is no recovery yet initiated against the petitioner and the writ petition has been filed only against a demand notice in respect of a billing dispute. This is therefore is not a recovery matter as per the roster assigned to this Bench.

Let the matter be placed before the appropriate Bench, if possible as a fresh matter on Monday (11.09.2017).

Order Date :- 7.9.2017

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Court No. - 40

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Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Bala Krishna Narayana,J.

Hon'ble Shailendra Kumar Agrawal,J.

Heard Sri Satyam Narayan, learned counsel for the petitioner and learned Standing Counsel for the State-respondent no.1 and Sri Ajay Kumar, learned Advocate appearing for the respondent no.2.

This writ petition has been filed by the petitioner with a prayer to issue, a writ, order or direction in the nature of certiorari to quash the bill/ notice dated 13.07.2017. A further prayer has been made by the petitioner that a writ of mandamus be issued to the respondent no.2 directing him not to disconnect the electricity connection of the petitioner.

It is the case of the petitioner that his grand-father had obtained an electricity connection of 40 HP being connection no. 0140/053732 for running a power loom. After the death of his grand-father, the aforesaid electricity connection was transferred in the name of the petitioner and his uncle. The grievance of the petitioner is that although the petitioner is required to pay tariff as per the Government Order No.1969/24P-3-2006 dated 24.06.2006 (Annexure No.3 to the writ petition), but the respondent no.2 has now raised a bill by applying the provisions of Government Order No. 387/PCL/CU-3-2006 (Annexure No.4 to the writ petition), although the provisions of this Government Order is not at all applicable to the power looms.

Per contra, learned counsel appearing for the respondent no.2 has disputed this very fact that the petitioner was granted connection for running power loom. However, he has invited our attention to Section 6.5 of the Electricity Supply Code, 2005, which provides the forum for settling the dispute arising out of incorrect bills. He further submitted that since the petitioner has got statutory alternative remedy for settling his grievances, this writ petition is liable to be dismissed on the ground of alternative remedy.

After having heard learned counsel for the parties and perused the averments made in the writ petition and the documents

appended thereto as well as Section 6.5 of the Electricity Supply Code, 2005. We find that there is force in the submissions made by the learned counsel for the respondent no.2.

Section 6.5 of the Electricity Supply Code, 2005 is being reproduced hereinunder:-

"6.5 Disputed Bills and Arrears

(a) If there is an error of a non-pecuniary nature (incorrect name, address etc.) in the bill the complaint shall be registered with the concerned competent authority. Corrections, if any required, shall be made in the next bill. The consumer shall be required to make the payment before due date.

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge.

(c) If a consumer has cleared his dues as specified in the bill, and still some part of it is shown as an arrear in the next bill, the consumer may lodge a complaint with the Licensee. However, if this arrear is again reflected in the next billing cycle also, the consumer shall be entitled for compensation as prescribed in Annexure 7.1.

(d) In case licensee raises a bill for supply of energy to permanently disconnected connection e.g. six months after temporary disconnection, the Consumer may intimate the MD of the licensee under proper receipt and if no action is still taken within next 15 days, shall be entitled for compensation as prescribed in Annexure 7.1 by licensee. The licensee shall submit a quarterly statement to the Commission giving zone wise details of such bills along with compensation given on this account during the quarter."

We have been informed by the learned counsel for the respondent no.2 that the competent authority for examining the

grievance of the petitioner is the respondent no.2.

In view of the above, without expressing any opinion on the merits of the case, we dispose of this writ petition with the liberty to the petitioner to make a representation against the disputed bills before the respondent no.2 along with certified copy of this order before the Executive Engineer First, Electricity Distribution Division- Victoria Park, Meerut, respondent no.2 and in case any such representation is moved by the petitioner before the respondent no.2 within two weeks along with certified copy of this order, he shall decide the same strictly in accordance with law by a speaking and reasoned order within a further period of four weeks from the date of receipt of such representation.

Order Date :- 11.9.2017

Anoop